

Criminalization of homelessness

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Homelessness erodes dignity, social inclusion, and the right to life, representing a breach of the right to housing and other human rights, including non-discrimination, health, and freedom from inhumane treatment, however, criminalizing homeless individuals fails to address the problem and instead penalizes them, violating their fundamental rights.

Homelessness as a primary violation:

International has put treaties, statues as well as laws in place for every issue worldwide, and there are laws that protect people such as the rights to adequate housing and more. The states have established legal obligations to guarantee its inhabitants housing and access to health maintenance for its citizens, and the state's failure to fulfill this obligation results in the fundamental breach of homelessness.

We see treaties protecting human basic rights such as Article 11(1) of the International Covenant on Economic , Social and Cultural rights(ICESCR), that stipulates that the States Parties should acknowledge the right of every individual to an adequate standard of living for themselves and their family, encompassing sufficient food, clothing and housing as well as the ongoing enhancement of living conditions. And the State Parties should undertake necessary measures to actualize this right, acknowledging the critical significance of international cooperation founded on voluntary consent. With reference to the 4% of the world's population, which is approximately 318 million people who are homeless, this Article is violated.

Article 12 provides that everyone has the right to the highest attainable standard of health, and research demonstrates that homeless individuals receive low-quality care and encounter substantial obstacles in accessing health services, resulting in worse health outcomes compared to the general population.

Aggravating violation: Criminalization

In addition to the fundamental failure to ensure sufficient housing, several states further violate human dignity by criminalizing homelessness, and this serves as an aggravating violation because it punishes people for engaging in life-sustaining activities in public places because of the state's own failure to fulfill its ICESCR obligations.

The criminalization of homelessness contradicts the spirit of the Universal Declaration of Human Rights (UDHR). Article 1 of the UDHR establishes that every human has equal rights, dignity, and freedom from birth. However, criminalization strips away the inherent dignity by treating a person's survival needs as a crime.

Article 7 of the UDHR stipulates that everyone is entitled to equal protection under the law and is treated equally before it. This means that everyone has the right to equal protection from discrimination and the criminalization of homelessness discriminates against a specific group of people which are homeless individuals, this violates the right to equal protection for the homeless individuals.

Article 22 of the UDHR stipulates that everyone is entitled to social security as well as the economic, social, and cultural rights that are necessary for their personal growth and dignity. Criminalization is the antithesis of social security because the state employs the criminal justice system to control poverty rather than providing essential assistance.

Recommendations

- fiscal responsibility and economic performance: making homelessness a crime is expensive and inefficient, squandering money in jail and enforcement without reducing homelessness on the streets. Permanent housing is a more economical and sustainable option, according to research, in addition to providing a higher return on investment, shifting money from the criminal justice system to housing programs upholds international human rights duties.

-community and private sector collaborations: reevaluating how local economies view homelessness as essential to ending the criminalization of homelessness. Local governments are urged to enhance cooperation between the private sector and homeless services, encouraging companies to promote social inclusion rather than imposing punitive measures.

Conclusion

The criminalization of homelessness, which turns a socioeconomic disaster into a criminal matter, exposes a serious flaw in the international human rights framework. States violate human dignity by penalizing people for their survival and ignoring the ICESCR's right to decent shelter. The international community is asked to switch from punitive tactics to rights-based strategies that emphasize community involvement, housing, and health to achieve social fairness and address homelessness through supportive measures.

Sources

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